

Court No. - 21

Case :- WRIT - C No. - 27543 of 2020

Petitioner :- Narayan Prasad

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Archit Mandhyan

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Sanjay Kumar Pachori,J.

The case is passed over on the request of Sri Archit Mandhyan, learned counsel for the petitioner.

Put up this matter on 1.2.2021 as fresh.

Order Date :- 20.1.2021

A.K.Srivastava

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Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Archit Mandhyan

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Sanjay Kumar Pachori,J.

Heard Sri Archit Mandhyan, learned counsel for the petitioner; Sri Devesh Vikram, learned Standing Counsel for the State-respondent no. 1 and Sri Narendra Kumar Tiwari, learned counsel for the respondent no. 2 and 3.

Petitioner is before this Court with a request commanding the third respondent to decide the application dated 31.10.2020 (Annexure No. 4 to the writ petition) within stipulated period.

Learned counsel for the petitioner submits that the petitioner is a tenant in House No. 17/134-A-1, Mohalla Pahadiya, Ward Sarnath, District Varanasi. As there is dispute between the landlord and tenant, the petitioner was forced to file an application 5.9.2019, under Section 30(1) of U.P.Act No. 13 of 1972 for depositing the rent in the court of Civil Judge (Junior Division), Varanasi. Initially the electricity meter in the property in question was in the name of landlord but with ulterior motive just to harass the petitioner, he got the meter disconnected in the month of September 2019 after filing of the aforesaid application. He submits that so far as the procedure which is provided under Uttar Pradesh Electricity Supply Code, 2005, the petitioner is ready and willing to accept the terms and conditions but there is apprehension that the landlord under the aforesaid dispute, would not accord No Objection Certificate and in absence of electricity connection, the petitioner would suffer irreparable loss. In support of his submissions, he has relied upon Division Bench judgment of this Court in ***Seema Mansoor Vs. U.P. Power Corporation Ltd. & 3 Others, 2014(6) ADJ 672.***

Per contra, learned counsel for the respondent has relied upon clause 6.4 of the Code, 2005 and submits in case, there is a dispute qua to the tenancy, the electricity department has every right to impose conditions provided under Code, 2005.

The Court has proceeded to examine the record in question and perused the judgment of this Court in *Seema Mansoor Vs. U.P.*

Power Corporation Ltd. & 3 Others, 2014(6) ADJ 672. For ready reference, relevant extract of the judgment is reproduced herein below.

"From the reading of the aforesaid provisions, it is clear that licensee is under an obligation to supply electrical energy on a proper application being made and every owner or occupier, which will include a tenant, of the premises has statutory right to apply and obtain electricity supply from the licensee subject to his fulfilling requirements under the provisions of the Electricity Act, 2003 and the Electricity Supply Code 2005. Thus, an application for grant of electricity connection cannot be refused by licensee on the ground that there is no consent of the landlord. From the scheme of the Act and the duties cast upon the licensee and right conferred upon the person making application for supply of electrical energy in case he submits indemnity bond, a lessee/tenant or occupier cannot be refused electricity connection merely for want of consent of the landlord.

Apart from above giving interpretation to the provision suggested by the learned counsel for the respondents would tantamount to nullifying the benefits and protection extended to tenant under the Rent Control Act. A scrupulous landlord would get the electricity connection disconnected, of the premises owned by him and in occupation of tenant, and shall never give his no objection to fresh electricity connection to the tenant forcing him to vacate the premises making the provisions of the Rent Control Act nugatory. Such interpretation shall not only be in the teeth of the provisions of the Act but also opposed to public policy.

The Division Bench judgment in the case of Ravi Shankar Giri and writ petition no. 71425 of 2013, Iftikhar Ahsan Vs. State of U. P. (supra) relied upon by the learned counsel for the respondents were passed without noticing the provisions of Clause 42 and 43 of the Electricity Act, the definition of the owner contained in the Code 2005 and Annexure 4.2 as also Clause 4.4 (a) (i) and Annexure 4.2 of the Code 2005. The above two judgments having failed to note statutory provisions cannot be said to lay down correct law.

In view of the aforesaid facts and discussions, the petitioner being occupier of the premises in question as a tenant has a legal right to obtain electricity connection and the respondents licensee was under an obligation to give connection for supply of electrical energy and the same could not have been refused solely for want of consent of the owner/landlord of the premises.

Accordingly, the petitioner is entitled to the relief claimed. Writ petition stands allowed. A mandamus is issued commanding the respondents to consider and grant electricity connection to the petitioner subject to his making application in accordance with law and the procedure prescribed and giving indemnity bond and fulfilling all other requirements. In the facts and circumstances of the case, there shall be no order as to costs. "

In the facts and circumstances, we are of the considered opinion that the petitioner being occupier of the premises in question as a tenant has a legal right to obtain electricity connection and the respondents licensee was under an obligation to give connection

for supply of electrical energy and the same could not have been refused solely for want of consent of the landlord of the premises. Accordingly, we direct the respondent no. 3 to consider and decide the aforementioned application of the petitioner subject to his making application in accordance with law and the procedure prescribed and giving indemnity bond and fulfilling all other requirements within a period of six weeks from the date of production of a copy of this order before him.

With the aforesaid, the writ petition stands **disposed of**.

The party shall file computer generated copy of such order downloaded from the official website of High Court Allahabad, self attested by the petitioners alongwith a self attested identity proof of the said persons (preferably Aadhar Card) mentioning the mobile number to which the said Aadhar Card is linked.

The concerned Authority/Official shall verify the authenticity of such computerised copy of the order from the official website of High Court Allahabad and shall make a declaration of such verification in writing.

Order Date :- 1.2.2021

A.K.Srivastava